

24NWCV01776 24NWCV01776

County: los-angeles

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Department: R

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#14

MEDWOOD v. METROPOLITAN STATE HOSPITAL, ET
AL.

CASE NO.: 24NWCV01776

HEARING: Tuesday, August 18, 2026, at 9:30 AM

Defendant DEPARTMENT OF STATE HOSPITAL'S Demurrer is SUSTAINED
without leave to amend.

Moving Party to give notice.

Background

On June 1, 2024, Plaintiff SAUNYA MEDWOOD ("Plaintiff")
filed this employment discrimination action against Defendants METROPOLITAN
STATE HOSPITAL, STELLA RAMIREZ, ZENOIDA HERNANDEZ, STATE COMPENSATION INSURANCE
FUND, and DOES 1 through 50. On February 18, 2026, Plaintiff filed the
operative Third Amended Complaint ("TAC").

Plaintiff's TAC asserts the following causes of action:

(1) Disability
Discrimination;

(2) Failure

to provide Reasonable Accommodation;

(3) Failure

to Engage in the Interactive Process;

(4) Retaliation;

and

(5) Wrongful

Termination

On January 2, 2026, Plaintiff dismissed Defendant State Compensation Insurance Fund.

On March 6, 2026, Plaintiff dismissed without prejudice her Fifth Cause of Action for Wrongful Termination.

On March 19, 2026, Defendant DEPARTMENT OF STATE HOSPITAL ("Defendant") filed the instant Demurrer with Motion to Strike to Plaintiff's TAC.

First and Second Causes of Action – Disability Discrimination

To plead disability discrimination, Plaintiff must show: (1) Plaintiff has a disability or medical condition or was regarded as suffering from a disability; (2) plaintiff could perform the essential duties of the job with or without reasonable accommodations; (3) the defendant's adverse employment decision; and (4) because of plaintiff's actual or perceived disability or medical condition.

Plaintiff alleges Defendant terminated her because of her disabilities. (TAC ¶ 49.) However, the FEHA does not prohibit an employer from discharging an employee who is unable to perform their essential duties even with a reasonable accommodation (Lowry v. Port San Luis Harbor Dist. (2025) 109 Cal.App.5th 56, 64.)

The Court looks to Plaintiff's allegations in her Second Amended Complaint ("SAC"). A Court may take judicial notice of admissions or

inconsistent statements by a party in earlier pleadings in the same lawsuit and may disregard conflicting factual allegations in the challenged pleading. (Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th 1162, 1174, citations omitted.)

In Plaintiff's SAC, she alleged she was "still unable to work" when Defendant allegedly took discriminatory action. (SAC ¶ 64.) Plaintiff alleged her union contract only allowed her to work if she was at "full capacity or maximum medical improvement," but Plaintiff was neither. (SAC ¶ 13.) Plaintiff further alleged the workers' compensation doctor placed her off work. (SAC ¶ 15.)

Thus, by Plaintiff's prior admission, she would not have been able to perform the essential functions of the job. Plaintiff does not explain why she omitted these facts from her TAC. Under the sham pleading doctrine, plaintiffs are precluded from amending the complaint to omit harmful allegations, without explanation, from prior complaints to avoid attacks raised in demurrers or motions for summary judgment. (Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425.)

Although Plaintiff now alleges she was able to perform essential job functions with reasonable accommodation, this allegation is entirely inconsistent with Plaintiff's SAC. Thus, the Court disregards Plaintiff's inconsistent allegation and holds that Plaintiff failed to plead she could perform essential duties even with reasonable accommodation.

Defendant's Demurrer is SUSTAINED against Plaintiff's First Cause of Action for Disability Discrimination.

Second and Third Causes of Action – Failure to Accommodate and Failure to Engage in the Interactive Process

To plead failure to accommodate, Plaintiff must show: (1) Plaintiff has a disability covered by the FEHA; (2) Plaintiff is a qualified individual (that they can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate Plaintiff's disability. (Wilson v. County of Orange (2009) 169 Cal.App.4th 1185, 1192.)

Liability for failing to engage in the interactive process may be imposed only if a reasonable accommodation would have been possible. (Nadaf-Rahrov

v. Neiman Marcus Group (2008) 155 Ca.4th 952, 982.) A leave of absence is a reasonable accommodation. (Hanson v. Lucky Stores, Inc. (1999) 74 Cal.App.4th 215, 226.)

Once again, the Court looks to Plaintiff's omitted allegations in her SAC. There, Plaintiff pleaded Defendant provided a leave of absence from October 30, 2019, to September 9, 2022. (SAC ¶¶ 11,15.) As noted above, the workers' compensation doctor placed Plaintiff off work and thus, Defendant granted Plaintiff a medical leave of absence. (SAC ¶¶ 11,15.)

Plaintiff fails to explain why she omitted these allegations from her TAC. Plaintiff's admissions in her SAC precludes her Second and Third Causes of Action as Defendant granted a reasonable accommodation, a leave of absence.

Defendant's Demurrer is SUSTAINED against Plaintiff's Second Cause of Action for Failure to Accommodate and Third Cause of Action for Failure to Engage in the Interactive Process.

Fourth Cause of Action – Retaliation

To plead retaliation, Plaintiff must show: (1) the employee's engagement in a protected activity; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation. (Miller v. Department of Corrections & Rehabilitation (2024) 105 Cal.App.5th 261, 285.)

"[T]o state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity." (Lopez v. Southern California Rapid Transit (1985) 40 Cal.3d 780, 795.)

Here, Plaintiff alleges "Plaintiff Requested accommodation and asserted disability rights" and "Defendant retaliated by terminating her employment." (TAC ¶ 56-57.)

Plaintiff fails to plead facts demonstrating what protected activity she engaged in and does not explain what disability right she asserted. The TAC is silent as to who Plaintiff asserted this disability right

to.

Further, as stated above, firing an employee who is unable to perform their essential duties is not an adverse employment action. Defendant's Demurrer is SUSTAINED against Plaintiff's Fourth Cause of Action for Retaliation.

Leave to
Amend

Leave to
amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC (2015) 244 Cal.App.4th 118, 226.)

The Court
notes that Plaintiff has not demonstrated she can successfully amend her TAC.

Further,
Plaintiff's prior admissions showcase that amendment would be futile. Indeed, Plaintiff's admissions demonstrate: (1) she was unable to perform the essential functions of the job even with a reasonable accommodation and (2) that Defendant did provide a reasonable accommodation.

Leave to
amend is DENIED.

Conclusion

Defendant's
Demurrer is SUSTAINED without leave to amend.

Defendant's
Request for Judicial Notice is GRANTED. (Cal. Evid. Code § 452(d).)